

## Multiple Choice (10 marks)

1. Which of the following propositions would be rejected by those who describe themselves as critical legal theorists?
  - (a) Law is unstable.
  - (b) Law is determinate.
  - (c) Law reflects economic power.
  - (d) Law is politics.
  - (e) Law is a social construct.
2. Why does Parfit oppose equality?
  - (a) He claims that by giving priority to the needs of the poor, we can increase equality.
  - (b) He rejects the idea of equality altogether.
  - (c) He believes that equality is not a realistic goal.
  - (d) He argues that an unequal society is inevitable.
  - (e) He suggests that societal structures inherently support inequality.
3. The \_\_\_\_\_ School of jurisprudence postulates that the law is based on what is "correct."
  - (a) Legal Pragmatism
  - (b) Legal Formalism
  - (c) Comparative
  - (d) Analytical
  - (e) Sociological
4. Why is it important to separate the concept of punishment from its justification?
  - (a) Because the concept of punishment has evolved over time.
  - (b) Because punishment can be justified in multiple ways.
  - (c) Because any definition of punishment should be value-neutral.
  - (d) Because the practice of punishment is separate from its justification.
  - (e) Because the justification of punishment varies across cultures.
5. In which of the following stages does an indigent person not have the Sixth Amendment right to counsel?
  - (a) Execution of the arrest warrant

- (b) investigative surveillance
- (c) Police interrogation prior to arrest
- (d) Post-charge lineups
- (e) Preliminary Hearing

## **True / False (10 marks)**

*Answer True or False*

6. True or False: Hume argued that natural law effectively secures the state's stability against external threats.
7. True or False: The protective principle of jurisdiction applies solely to crimes committed within the territory of a state.
8. True or False: The international recognition of human rights after World War II significantly contributed to the revival of natural law in the 20 th century.
9. True or False: Partial performance of a contract does not terminate the contract by operation of law.
10. True or False: A three-fourths vote in the Senate is required to convict and remove a president from office after impeachment by the House.

## **Long Form Response (20 marks)**

*Answer each question with a clear and complete explanation.*

11. Discuss the admissibility of evidence in court by analyzing why a diary entry from the insured's mother, regarding the insured's birth date, may be deemed inadmissible in a trial concerning life insurance proceeds.
12. Discuss the relationship between legal positivism and morality, specifically addressing the claim that it regards morals and law as inseparable. Analyze its implications for constitutional law.

*End of Paper*